

HOUSE No. 997

The Commonwealth of Massachusetts

PRESENTED BY:

Adrian C. Madaro

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act improving air quality in airport environmental justice communities.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Adrian C. Madaro</i>	<i>1st Suffolk</i>	<i>1/17/2025</i>
<i>William F. MacGregor</i>	<i>10th Suffolk</i>	<i>3/4/2025</i>
<i>Samantha Montaño</i>	<i>15th Suffolk</i>	<i>4/9/2025</i>
<i>Greg Schwartz</i>	<i>12th Middlesex</i>	<i>5/13/2025</i>

HOUSE No. 997

By Representative Madaro of Boston, a petition (accompanied by bill, House, No. 997) of Adrian C. Madaro and William F. MacGregor for legislation to require the Massachusetts Port Authority to conduct an environmental risk assessment of the health impacts of the General Lawrence Logan Airport in the East Boston section of the city of Boston and the town of Winthrop. Environment and Natural Resources.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act improving air quality in airport environmental justice communities.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 465 of the Acts of 1956 is hereby amended by adding the following
2 5 sections:-

3 Section 37. (a) Not less than every five years, the department of environmental protection
4 shall require the Authority to promulgate standards and measurements related to air quality and
5 noise levels in the East Boston section of the city of Boston, hereinafter referred to as East
6 Boston. The Department shall review the standards and measurements promulgated by the
7 Authority, and may require the Authority to update said standards and measurements should the
8 Department deem them to be insufficient or inaccurate.

9 (b) The department of environmental protection shall conduct air monitoring in no less
10 than 3 locations in East Boston. Such air monitoring shall include, but not be limited to, the
11 standards of the department's annual Air Monitoring Network plan, which it prepares in

accordance with Title 40 CFR Part 58.10. The costs of air monitoring in East Boston shall be borne by the Authority.

(b) The Authority shall post air quality and noise level measurements, including, but not limited to, those from department of environmental protection air quality monitors located in East Boston, on a publicly accessible internet website as reasonably frequent as possible. The Authority shall utilize said data in all reporting on the environmental impacts of operations at Logan Airport, including, but not limited to, the report required in section 38.

Section 38. (a) Not less than every five years, the Authority shall prepare and publish a report outlining its strategies and practices for the management of air quality and noise levels in East Boston. The report shall include, but shall not be limited to:

(i) an assessment of current and projected future air quality and noise levels in the East Boston section of the city of Boston, hereinafter referred to as East Boston, that includes but is not limited to air quality data obtained by the department and the Massachusetts Port Authority Community Advisory Committee under Chapter 46 of the Acts of 2013;

(ii) the environmental impact of the General Edward Lawrence Logan International Airport, hereinafter referred to as Logan Airport, on East Boston, particularly in regards to air quality and noise levels; and

(iii) strategies for the management of air quality and noise levels in East Boston, including objectives for the restriction of the levels at which particular substances are present in the air and objectives for restrictions of noise levels.

(b) The strategies and practices identified by the Authority in its report shall include, but shall not be limited to:

(i) standards and measurements relating to air quality and and noise levels in East Boston as approved by the Department pursuant to section 37; objectives for the restriction of the levels at which particular substances are present in the air and objectives for restrictions of noise levels.

(ii) the types of air and noise pollution impacting air quality and noise levels in East Boston, the likely sources of said air and noise pollution, and whether said sources of air and noise pollution are related to operations at Logan Airport.

(iii) an assessment of whether air quality standards and objectives and noise level standards and objectives are being achieved, or are likely to be achieved, within the next five years.

(iv) measures which are to be taken by the Authority, state and local authorities and other persons for the purpose of achieving those objectives.

(c) Before publishing the report or any modification of it, the Authority shall publish a draft of the proposed strategy or modification, together with notice of a date before which, and an address at which, public comments may be made to the Authority concerning the draft so published; provided that the Authority shall consider and include a summary of public comments in its final report. Copies of the draft or any modification shall be made available to the public at no charge.

(d) If, as a result of the report required by this section, it appears that any air quality standards or objectives or noise level standards or objectives are not being achieved, or are not

likely to be achieved within five years, the Authority shall identify any specific areas of the East Boston neighborhood in which said air quality standards or objectives or noise level standards or objectives are not likely to be achieved, as well as any sources of air and noise pollution related to operations at Logan Airport which are likely to be responsible.

(e) Where, as a result of the report required by this section, it appears that any air quality standards or objectives or noise level standards and objectives are not being achieved, or will not likely be achieved within five years, the Authority shall designate East Boston as an air quality management area or a noise level management area, hereinafter referred to as the “designated area”, until such time as a subsequent strategy report has shown that both air quality standards and objectives and noise level standards and objectives have been achieved.

Section 39. (a) The Authority, in consultation with state and local government, shall take measures to remediate the designated area. The Authority shall prepare a written action plan to achieve the air quality standards and objectives or noise level standards and objectives in the designated area. The action plan shall include a statement of the timeline within which the Authority proposes to implement each of the proposed measures included in the action plan.

Section 40. (a) If the Authority fails to issue the report as required by section 38, the department of environmental protection, hereinafter referred to as the department, shall issue an order that:

(i) air quality standards or objectives are not being achieved, or are not likely within the relevant period to be achieved by the Authority, within the designated area;

(ii) noise level standards or objectives are not being achieved, or are not likely within the relevant period to be achieved by the Authority, within the designated area;

(iii) that the Authority has failed to discharge any duty imposed on it under sections 37 to 39, inclusive;

(iv) that the actions, or proposed actions, of the Authority in purported compliance with the provisions of this act are inappropriate in all the circumstances; or

(v) that developments in science or technology, or material changes in circumstances, have rendered inappropriate the actions or proposed actions of the Authority in pursuance of sections 37 to 39, inclusive.

(b) Upon the issuance of such order the department shall give directions to the Authority requiring it to take steps specified by the department to ensure compliance with sections 37 to 39, inclusive; provided that the department shall require the Authority to cause an air quality review or noise level review to be conducted under direction of the department; and provided further that the Authority shall prepare and carry out an action plan in consultation with the East Boston Project Advisory Committee established under chapter 349 of the acts of 1986 that includes the most recent standards and measurements related to air quality and noise levels determined by the department under section 37 and its most recent air quality and noise level review findings.

Section 41. The Authority, in coordination with the bureau of environmental health of the department of public health, shall regularly conduct an environmental risk assessment of the health impacts of the General Lawrence Logan Airport in the East Boston section of the city of Boston and the town of Winthrop. Such assessment shall include, but not be limited to: (1) air quality monitoring, including, but not limited to, utilizing data from air quality monitoring stations operated by the department of environmental protection in the East Boston section of the

city of Boston, and the total particle number concentration of both indoor and outdoor spaces; (2) air quality modeling, utilizing data from said air quality monitoring to construct high spatial resolution pollution concentration estimates for the East Boston section of the city of Boston; (3) time activity exposure analysis, utilizing data from said air quality monitoring with a time activity analysis to calculate integrated participant exposure to each pollutant; and (4) health association surveys, to associate pollutant exposure with classes of health outcomes, including, but not limited to: cardiovascular diseases, neurological diseases, respiratory diseases and cancers.

The Authority shall regularly report its findings together with any recommended response actions by the commonwealth not less than every ten years, to be published on the Authority's website, with a copy transmitted to the house and senate committees on ways and means, beginning not later than January 1, 2030.

SECTION 2. Section 142B of chapter 111 of the General Laws, as appearing in the 2016 Official Edition, is hereby amended by striking out the eighth paragraph and inserting in place thereof the following paragraph:-

The department shall maintain and operate such air sampling stations and devices; make or perform such routine and special examinations, inspections, observations, determinations, laboratory analyses, and surveys; maintain such records; and perform such other acts as it deems necessary to conduct an adequate air pollution control program within the metropolitan air pollution control district. The department shall, in its annual Air Monitoring Network plan, which it prepares in accordance with Title 40 CFR Part 58.10, at each location where the department monitors for particulate matter 2.5 micrometers and smaller in diameter, monitor and

119 report for ultrafine particulate matter less than 100 nanometers in diameter, in addition to its
120 other monitoring at those locations.